

OFFICE OF THE SECRETARY

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August 17, 2021

The Honorable Larry P. Fidler
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012

Re: Damien Andre Gates
CDCR No: V32133
Case No: BA245230
Date of Sentence: February 25, 2004

Dear Honorable Larry P. Fidler:

The purpose of this letter is to provide the court with the authority to resentence inmate Damien A. Gates, V32133 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, Subdivision (d)(1) provides that upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Gates has remained disciplinary free since being received to CDCR on April 14, 2004. Inmate Gates is currently assigned as an American's with Disabilities Act Aide, and his current supervisor notes his work and conduct is exceptional. Inmate Gates also participates in Fathers Behind Bars, Defy Ventures, Phoenix Alliance, and Celebrate Recovery Inside groups. Inmate Gates has received numerous certificates and laudatory chronos from group sponsors, acknowledging his commitment and dedication to these self-awareness and improvement groups. Inmate Gates met the standards of the General Educational Development and received his High School Equivalency Certificate at Centinela State Prison.

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Having reviewed the enclosed documentation it appears that inmate Gates' sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



KATHLEEN ALLISON
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office